

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 07/30/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: C22-01352
CASE NAME: ETHAN LYNCH VS. JOHN MUIR HEALTH, A CORPORATION
SETTLEMENT CONFERENCE WITH SETTLEMENT MENTOR
FILED BY:

TENTATIVE RULING:

No appearances in Department 10 required, as this is set for a settlement conference.

2. 8:31 AM CASE NUMBER: C24-03183
CASE NAME: NAVYA SHARMA VS. RAVINDER SHARMA
*CASE MANAGEMENT CONFERENCE TRAILING MOTION.
FILED BY:

TENTATIVE RULING:

The Court believes this matter has resolved. The Court continues this hearing to September 30 for and Order to Show Cause Why the Case Should Not Be Dismissed. Of course, the OSC will be mooted by the filing of a dismissal.

Law & Motion

3. 9:00 AM CASE NUMBER: C22-01607
CASE NAME: SANDRA GAVAN VS. CRYSTYL RANCH HOMEOWNERS ASSOCIATION
HEARING ON SUMMARY MOTION
FILED BY: CRYSTYL RANCH HOMEOWNERS ASSOCIATION
TENTATIVE RULING:

Defendants Crystyl Ranch Homeowners Association (“HOA”), Omni Community Management, LLC (“Omni”), John Bolin (“Bolin”), and Daniel Mahoney (“Mahoney” together with HOA, Omni, and Bolin, “Defendants”) bring the instant motion for summary judgment, or in the alternative summary adjudication (“MSJ”) against the complaint of plaintiff Sandra Gavan (“Plaintiff”).

For the reasons discussed below, the Court **GRANTS** Defendants’ motion for summary judgment as to Omni Community Management LLC and **DENIES** Defendants’ motion for summary judgment with respect to Crystyl Ranch Homeowners Association, John Bolin, and Daniel Mahoney.

Legal Standard for Motion for Summary Judgment

Code of Civil Procedure (“CCP”) § 437c, subds. (o)(1) and (p)(2) provide the relevant legal standard for deciding Defendant’s Motion. Section 437c(o)(1) provides, in relevant part:

A cause of action has no merit if one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded.

Section 437c(p)(2) provides, in relevant part:

A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) “All

doubts as to whether there are any triable issues of fact are to be resolved in favor of the party opposing summary judgment.” (*Ingham v. Luxor Cab Co.* (2001) 93 Cal.App.4th 1045, 1049.) The scope of the defendant’s initial burden is defined by the pleadings. (See *580 Folsom Assocs. v. Prometheus Dev. Co.* (1990) 223 Cal.App.3d 1, 18.)

Background

The complaint “(Complaint”) in this matter was filed by Plaintiff on August 5, 2022, and it asserts five counts of breach of fiduciary duty and a request for attorney fees and costs against Defendants on the basis of alleged: (1) failure to act in good faith; (2) arbitrary and capricious acts; (3) unreasonable acts; (4) selective enforcement; and (5) disparate and inequitable treatment. (Complaint, pp. 1-8.)

Undisputed Material Facts

This MSJ relies on a total of 31 undisputed material facts (“UMF”). (Separate Statement ISO MSJ, pp. 1-18.) UMF Nos. 1-25 are exactly the same and are repeated for both **issue no. 1** (Plaintiff’s cause of action for breach of fiduciary duty against the association has no merit because Plaintiff’s requests in her application did not comply with the CC&Rs) and **issue no. 2** (Plaintiff’s cause of action for breach of fiduciary duty against the association has no merit because judicial deference applies). (Separate Statement ISO MSJ, pp. 1-18.) **Issue no. 3** (Plaintiff’s cause of action for breach of fiduciary duty against Daniel Mahoney and John Bolin has no merit) relies on a select portion of UMF Nos. 1-25, UMF Nos. 19 -25. (Separate Statement ISO MSJ, pp. 16-17.) **Issue No. 4** (Plaintiff’s cause of action for breach of fiduciary duty against Omni Community Management, LLC has no merit) relies on UMF Nos. 26-31. (Separate Statement ISO MSJ, pp. 17-18.) The only UMF Nos. that Plaintiff fully disputes are UMF Nos. 21, 24, and 25, with partial disputes as to UMF Nos. 2, 14, 15, 16, and 20. (Separate Statement ISO Opposition, pp. 1-147.)

As per a selection of the fully undisputed UMFs, “[o]n November 8, 1996, the Declaration of Covenants, Conditions, and Restrictions of Crystyl Ranch (‘CC&Rs’) were recorded.” (UMF No. 1.) “The first Architectural Control Committee (‘ACC’) was created on February 5, 2002” and it “is a committee organized in accordance with Section 4.10.3 of the CC&Rs, and has primary jurisdiction to review and approve any construction, painting, alteration or change of any ‘Improvement’ on the ‘Project’ which requires prior approval of the ACC.” (*Id.*, Nos. 3-4.)

“Pursuant to section 4.10.3, subdivisions (c) and (e) of the CC&Rs, the ACC has adopted ‘Landscape Guidelines.’ ” (UMF No. 5.) “Landscape Guideline No. 2 requires that ‘[a]ll fencing and walls shall be subject to review and approval by the committee. Open wire fencing may not be modified unless approve[d] by the ACC and the [C]ity [of] [C]oncord (Adopted from the CC&Rs, section 4.10.3.f.(v)).’ ” (*Id.*, No. 6.) “Section 4.10.3, subdivision (f)(vi) of the CC&Rs states: ‘[a]ll fencing and walls shall be subject to review and approval by the Committee. Open wire fencing installed by a Declarant on any portion of the Lots in the Project may not be modified.’ ” (*Id.*, No. 9.) “Section 4.10.5 of the CC&Rs provides that ‘[u]pon sufficient submission of an application for Committee review, the Committee shall proceed expeditiously to review all of the documents to determine whether the proposed work is in compliance with the provisions and purposes of the Project Documents and all Guidelines of the Committee in effect at the time the documents are submitted.’ ” (*Id.*, No. 11.)

“Plaintiff moved into her home at 5308 Oakpoint Court, Concord, CA 94521 in 2015.” (UMF No. 18.)

“On May 7, 2021, Plaintiff submitted two applications to the ACC to change her shared fence.” (*Id.*, No. 19.) “Plaintiff was sent a letter dated May 24, 2021, notifying her of the denial of her two applications to change her shared fence because pursuant to Section 4.10.3 subdivision (f)(vi) of the CC&Rs, her fences must remain the same.” (*Id.*, No. 22.) “On July 15, 2021, Plaintiff’s appeal of the ACC’s denial of her two applications was heard by the Board of Directors.” (*Id.*, No. 23.)

The disputed facts are as follows. “The ACC diligently reviewed and investigated Plaintiff’s applications, and based on the information made available to it, and in their best judgment, which they exercised in good faith, the ACC unanimously denied Plaintiff’s applications.” (UMF No. 21.) “The Board of Directors diligently reviewed Plaintiff’s appeal, and based on the information made available to it, and in its best judgment, which they exercised in good faith, the Board unanimously denied Plaintiff’s appeal.” (*Id.*, No. 24.) “On July 21, 2021, a letter was sent to Plaintiff formally denying her appeal because in the Board of Directors’ best judgment, the fences Plaintiff was requesting were not permitted by the CC&Rs and must remain the same.” (*Id.*, No. 25.)

Discussion

Summary of Arguments

Defendants argue that the denial of Plaintiff’s ACC applications did not breach any fiduciary duty because the requests in her application did not comply with the CC&R’s. (MPA ISO MSJ, pp. 7-9.) Defendants also argue that Plaintiff’s breach of fiduciary duty claim is barred because judicial deference applies to the ACC’s and Board’s decisions. (*Id.* at pp. 9-14.) Defendants further contend that Plaintiff’s breach of fiduciary duty claim against Mahoney and Bolin fail as a matter of law because Plaintiff has no evidence of their individual liability. (*Id.* at p. 14.) Finally, Defendants argue that Plaintiff’s claim against Omni fails as a matter of law because Omni did not owe Plaintiff a fiduciary duty and played no role in the decision to deny Plaintiff’s applications. (*Id.* at p. 15.)

In opposition, Plaintiff argues that the HOA fails to meet its burden of establishing a lack of a triable issue of material fact as to (1) whether an authorized Declarant installed the hybrid wire/wood fencing, and (2) whether the hybrid wire/wood fencing is authorized by the CC&Rs. (Opposition, pp. 7-12.) Plaintiff also argues that there is a triable issue of material fact as to whether the HOA breached its duty owed to Plaintiff by acting in an arbitrary and capricious manner. (*Id.* at pp. 12-17.) Plaintiff finally argues that judicial deference does not excuse the HOA’s failure to enforce its own CC&Rs. (*Id.* at pp. 17-18.)

On reply, Defendants argue for the first time that the HOA does not owe a fiduciary duty to Plaintiff. (Reply, pp. 1-2.) This was not argued in the moving papers with respect to the HOA and will not be considered. Defendants argue that Plaintiff failed to create any triable issues of fact because the evidence used by Plaintiff in opposition lacks authenticity and should be stricken and disregarded, in addition to being irrelevant and immaterial. (*Id.* at pp. 2-3.) Finally, Defendants argue that their MSJ should be granted because the ACC has discretion to approve all fence applications and is afforded judicial deference. (*Id.* at pp. 3-10.)

Analysis

“The elements of a cause of action for breach of fiduciary duty are: (1) existence of a fiduciary duty;

(2) breach of the fiduciary duty; and (3) damage proximately caused by the breach.” (*Stanley v. Richmond* (1995) 35 Cal.App.4th 1070, 1086.)

Plaintiff’s Applications’ Failure to Comply with the CC&Rs

Here, Defendants do not explicitly identify which element of Plaintiff’s burden they are trying to disprove or what affirmative defense they are seeking to show. However, they in part appear to focus on a failure of Plaintiff to show “breach,” as that is what their first argument is centered on. (MPA ISO MSJ, p. 7 [the “denial of Plaintiff’s ACC applications **did not breach** any fiduciary duty to Plaintiff because the requests in her ACC applications did not comply with the CC&Rs.”].) This is based on Defendants’ understanding of the CC&R requirements, as laid out in their denial letter to Plaintiff, which shows that they asserted that they did not believe that such a modification that Plaintiff requested was allowed by the CC&R: “Dear Homeowner . . . The architectural applications submitted and reviewed . . . have been denied by the architectural committee for the following reason: - Section 4.10.3, F, VI, of the CC&R’s states the following: All fencing and walls shall be subject to review and approval by the committee. **Open wire fencing installed by a declarant on any portion of the lots in the project may not be modified.** The fences you are requesting to modify have to remain the same per the governing documents.” (Evid. ISO MSJ, Exh. 14; Steinpress Decl. ISO MSJ, ¶ 18; Wan Decl. ISO MSJ, ¶ 21 [“The ACC denied Plaintiff’s two applications because section 4.10.3.f.(vi) of the CC&Rs required her fence to remain the same. This is because open wire fencing installed by a Declarant on any portion of the lots in the Project may not be modified.”]; Axon Decl. ISO MSJ, ¶ 17 [“The ACC denied Plaintiff’s two applications because section 4.10.3.f.(vi) of the CC&Rs required her fence to remain the same. This is because open wire fencing installed by a Declarant on any portion of the lots in the Project may not be modified.”]; Brophy Decl. ISO MSJ, ¶ 20 [“The ACC denied Plaintiff’s two applications because section 4.10.3.f.(vi) of the CC&Rs required her fence to remain the same. This is because open wire fencing installed by a Declarant on any portion of the lots in the Project may not be modified.”].)

Thus, the denial of Plaintiff’s request was based on the following assumptions: (1) that the fence Plaintiff was seeking to replace was an “open wire” fence; and (2) that it was “installed by a Declarant.” First, as pointed out by Plaintiff in her response and supporting evidence to UMF Nos. 21, 24, and 25, the fencing was not “open wire,” but rather, was part wire and part wood. (Separate Statement ISO Opposition, pp. 36, 42, 48, 91, 99, 107-108, 121 132, 143.) Defendants **admit this** in their moving papers (and supporting declarations) when they argue that Plaintiff wanted to “replace the existing wood and open wire fence . . . with all board-on-board wood. . .” (MPA ISO MSJ, pp. 4-5; Steinpress Decl. ISO MSJ, ¶¶ 14-15; Wan Decl. ISO MSJ, ¶ 25; Axon Decl. ISO MSJ, ¶ 18; Brophy Decl. ISO MSJ, ¶ 21.) There is therefore a (significant) question of fact regarding whether the fence Plaintiff sought to replace was an “open wire” fence as the term is used in the CC&R’s and was used to deny her applications. This calls into question UMF Nos. 21, 24, and 25.

Further, it almost goes without saying that the “open-wire” fence Plaintiff sought to replace was not “installed” by a declarant, as it appears that Paul and Michelle Stephens (the Stephenses are neighbors of Plaintiff who share the fence with Plaintiff that Plaintiff seeks to modify) had some of the fence built in 1999, with alleged *approval* of Braddock & Logan Group, L.P.: “The purpose of this letter is to obtain approval for an alteration of the existing fence across the back of our property. We would like to change the existing 70-inch high solid redwood fence to a deer fence. Our lot has a beautiful view of the hills and bay, which we would like to enjoy while we spend time in our backyard

and living area.” (Evidence ISO MSJ, Exhibit 17; Steinpress Decl. ISO MSJ, ¶ 21.) It appears another portion of the fence was built by Oliver and Mary Ann Robling (the Roblings used to live in a property that shared the fence with Plaintiff): “We would like to change the existing 70 inch high solid redwood fence to a 36 inch high redwood with the remaining 34 inches of deer wire. Last week we moved into our new home and realized that we have a potentially wonderful view of the hills and the bay.” (Evidence ISO MSJ, Exhibit 17, Steinpress Decl. ISO MSJ, ¶ 21.)

Apparently, despite the HOA knowing this information, they still felt that their hands were tied because “the ACC interprets ‘installed’ to mean ‘approved.’ ” (MPA ISO MSJ, p. 8; Wan Decl. ISO MSJ, ¶ 15; Adent Decl. ISO MSJ, ¶ 15; Axon Decl. ISO MSJ, ¶ 21; Brophy Decl. ISO MSJ, ¶ 14.) Whether this interpretation—which does not appear in the CC&Rs—is reasonable, was done in good faith, and is not arbitrary or capricious is a question of fact that is outstanding, and this is solely based on Defendants’ own submitted evidence in support of its MSJ. (Evid. ISO MSJ, Exh. 3 [“installed” is not a defined term in the CC&Rs and the CC&Rs do not appear to dictate that the word installed be interpreted this way]; Steinpress Decl. ISO MSJ, ¶ 3; Wan Decl. ISO MSJ, ¶ 3.) According to the declaration of Bob Wan, there was protest by Plaintiff’s neighbors that could have even been an unidentified reason for the denial of Plaintiff’s request to change her fence. (Wan Decl. ISO MSJ, ¶ 25 [“Plaintiff wanted to change a bottom half board-on-board wood fence, top half wire fence, which was originally approved by the Declarant in 1999, to an all board solid fence, despite both of her neighbors protesting and not wanting the change. Indeed, the Stephens had the same fence since 1999, and the Weinstens had the same fence since 2005, while Plaintiff did not even move in until 2015.”].) All of this calls into question UMF Nos. 21, 24, and 25.

Thus, based only on Defendants’ moving papers and supporting evidence, Defendants have not satisfied their burden of showing that there are no triable issues of material fact and that they are entitled to judgment as a matter of law as to the argument that they did not breach any fiduciary duty to Plaintiff because her applications did not conform to the CC&Rs.

Additionally, the approval of the fence change that was requested by the Stephens and the Roblings was apparently provided by Braddock & Logan Group, L.P. (Evidence ISO MSJ, Exh. 17; Steinpress Decl. ISO MSJ, ¶ 21.) Plaintiff provides evidence that that Braddock & Logan Group, L.P.—who appears to have been a “Declarant” at one time—had possibly signed away their rights as a declarant to Pulte Home Corporation in 1996. The fence Plaintiff wanted to replace was therefore possibly *not* installed by a declarant, and there is a question of fact as to whether the 1999 change was even *approved* by a declarant. (Evidence ISO Opposition, Exh. A [Declaration of Marshall Torre, who appears to be the exact Braddock & Logan Group, L.P. employee who signed the approval in 1999, although he declares that he has no recollection of signing the approval].)

Judicial Deference to HOA Decisions

“[T]he judicial deference rule applies to an association board’s **discretionary** decisions concerning the operation of the common interest development, e.g., the board’s maintenance and repair decisions (*Lamden*), its selection of the appropriate means to remedy a violation of the CC&Rs (*Haley*), its designation of storage space in a common area (*Harvey*), its adoption of rules relating to short-term rentals (*Watts*), or its approval or rejection of a homeowner’s improvement plan (*Dolan-King*).” (*Eith v. Ketelhut* (2018) 31 Cal.App.5th 1, 16 [emphasis added].)

Here, Defendants have not satisfied their burden of showing that there are no genuine disputes of material facts as to this issue because the evidence appears to show that the HOA did not exercise its discretion as to this decision because the HOA believed that it was required to deny Plaintiff's request. "The ACC denied Plaintiff's two applications because section 4.10.3.f.(vi) of the CC&Rs *required her fence to remain the same*. This is because open wire fencing installed by a Declarant on any portion of the lots in the Project may not be modified." (Wan Decl. ISO MSJ, ¶ 21; Axon Decl. ISO MSJ, ¶ 17; Brophy Decl. ISO MSJ, ¶ 20, emphasis added.) This was not a weighing of different considerations and a reasoned decision that should not be second guessed; this was a denial that could have been made based on a possibly mistaken view that the fence in question was an "open-wire" fence, a questionable interpretation of "installed" to mean "approved," and a belief that Braddock & Logan Group, L.P. was still a declarant in 1999.

Further, "[g]enerally, courts will uphold decisions made by the governing board of an owners association so long as they represent good faith efforts to further the purposes of the common interest development, ***are consistent with the development's governing documents***, and comply with public policy." (*Nahrstedt v. Lakeside Village Condominium Assn.* (1994) 8 Cal.4th 361, 374 [emphasis added].) Here, as discussed above, it is a question of fact as to whether the HOA's decision was consistent with the CC&Rs given the potentially mistaken view that the fence in question was an "open-wire" fence, a questionable interpretation of "installed" to mean "approved" and a belief that Braddock & Logan Group, L.P. was still a declarant in 1999.

Josh Bolin and Daniel Mahoney

Defendants assert that Plaintiff has failed to submit any evidence that shows Bolin or Mahoney acted outside the scope of their association duties or have any individual liability. (MPA ISO MSJ, p. 14.) Defendants also assert that both Bolin and Mahoney have passed away since his lawsuit was initiated. (*Ibid.*) Defendants submit no evidence for these specific issues and have additionally not submitted any unique UMFs on the topic of Bolin and Mahoney's lack of personal liability. The UMFs Defendants have submitted in support of the MSJ for Bolin and Mahoney are UMF Nos. 19-25. And as described above the Court has found that UMF Nos. 21, 24, and 25 have genuine disputes. (Separate Statement ISO MSJ, pp. 17-18.) Defendants have not met their initial burden with respect to these defendants.

Omni Community Management LLC

There are six undisputed material facts identified by Defendants as to defendant Omni (UMF Nos. 26-31.) Plaintiff has represented that all of these UMFs are "undisputed." (Separate Statement ISO Opposition, p. 147.) These facts show that Omni would gather documents from homeowners and provide them to the HOA and then transmit communications from the HOA to the homeowners and had no input or authority in determining whether an ACC application is approved or denied. (UMF Nos. 27, 28, 29, 30, 31.)

Defendants argue that Plaintiff's claim against Omni fails as a matter of law because Omni did not owe Plaintiff a fiduciary duty and played no role in the decision to deny Plaintiff's applications. (MPA ISO MSJ, p. 15.) Plaintiff did not oppose this in the opposition and only stated that Plaintiff is dismissing Omni without prejudice pending further discovery. (Opposition, p. 18.)

The Court finds that Defendants have met their burden with respect to Omni and will grant the

motion for summary judgment as to Omni.

Defendant's Objections to Plaintiff's Evidence

"In granting or denying a motion for summary judgment or summary adjudication, the court need rule only on those objections to evidence that it deems material to its disposition of the motion." (Code of Civ. Proc., § 437c, subd. (q).) Here, the Court finds that it need not rule on Plaintiff's objections or Defendants' objections as they are not material to the disposition of this MSJ. However, the Court overrules Defendants' objection to the declaration of Marshall Torres.

Ruling

The Court **GRANTS** Defendants' motion for summary judgment as to Omni Community Management LLC and **DENIES** Defendants' motion for summary judgment with respect to Crystyl Ranch Homeowners Association, Josh Bolin, and Daniel Mahoney.

4. 9:00 AM CASE NUMBER: C23-01403

CASE NAME: GUPTA VS. NATIONSTAR MORTGAGE

HEARING ON SUMMARY MOTION

FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Nationstar Mortgage, LLC ("Defendant" or "Nationstar")'s motion for summary judgment or in the alternative summary adjudication. The Motion relates to Plaintiff Praveen Gupta ("Plaintiff" or "Gupta")'s First Amended Complaint for (1) violation of CCP § 2923.6, (2) violation of CCP § 2923.7, (3) wrongful foreclosure, (4) quiet title (against Gregory Owen), and (5) violation of business and professions code § 17200.

In opposition, Plaintiff withdrew his first and second claim for violations of HBOR. For the following reasons, Defendant's motion with respect to Plaintiff's claims for wrongful foreclosure and violation of Business and Professions Code § 17200 is **granted**.

Request for Judicial Notice

Defendant requests Judicial Notice of several County Recorder documents. This Request is unopposed. The Request for Judicial Notice is **granted**. (Evid. Code §§ 452, 453; see also *Linda Vista Village San Diego Homeowner's Association, Inc. v. Tecolote Investors, LLC* (2015) 234 Cal.App.4th 166, 184 ["Judicial notice may be taken of the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face."].)

Plaintiff requests Judicial Notice of the Declaration of Praveen Gupta in Support of Ex Parte Application for a Temporary Restraining Order filed on June 26, 2023 in this action. This Request is also unopposed. "A court may take judicial notice of the existence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of

fact and conclusions of law, and judgments. [Citations.]" (*Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 22.) Subject to those limitations, the request is **granted**.

Legal Standard

Summary judgment is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) Where a defendant seeks summary judgment or adjudication, he must show that either "one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action." (*Id.* at § 437c(o)(2).) A defendant may satisfy this burden by showing that the claim "cannot be established" because of the lack of evidence on some essential element of the claim. (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a "triable issue of one or more material facts exists as to that cause of action or defense thereto." (*Ibid.*)

The moving party bears the initial burden of production to make a *prima facie* showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be established or (2) that there is a complete defense to that cause of action. (*Id.* at § 437c(p).)

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (*Id.* at § 437c(p)(2).) On a motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 21.)

Factual Background

The vast majority of facts in this case are undisputed.

Plaintiff Praveen Gupta refinanced the prior purchase of a property at 1704 Bridgeview Street, Pittsburg, CA 94565 (the "Subject Property"), with a loan ("Loan"), evidenced by a Note ("Note") from Lehman Brothers Bank, FSB, ("Lehman") on or about September 8, 2005. (UMF 1.) Securing the Note was a deed of trust ("DOT") encumbering the Subject Property and recorded as Document No. 2005-0353300 in the Official Records of the Contra Costa County Recorder's Office. (UMF 2.)

On or about July 2017, the beneficial interest in the 2005 Deed of Trust was assigned from Mortgage Electronic Registrations Systems, Inc. ("MERS") as nominee for Lehman to the following trust: HSBC Bank USA, NA., as trustee for the Structured Adjustable Rate Mortgage Loan Trust, Mortgage Pass Through Certificates, Series 2005-21 (the "HSBC Trust"), by way of a corporate assignment of deed of trust ("Assignment") with Nationstar as the servicer in fact, recorded on July 21, 2017, as Document No. 2017-9013054900002 in the Official Records of Contra Costa County. (UMF 4.)

On or about May 2018, the Borrower defaulted on his Loan obligations. A demand letter was sent noting that Mr. Gupta owed \$10,240.49. (UMF 5.) On or about April 30, 2019, a Notice of Default was recorded in the official records of Contra Costa County to reflect the fact that Plaintiff had defaulted on his loan and had failed to cure his then \$45,778.17 arrearage. (UMF 6.) The NOD contains the Declaration of Compliance with Civil Code Section 2923.5 and was recorded on April 30, 2019, as

Document No. 2019-006025800004 in the Official Records of Contra Costa. (UMF 7.) Plaintiff admits defaulting on his loan obligations. (UMF 8.)

As the servicer of the Loan, Nationstar began to work with Plaintiff to explore options to avoid foreclosure. (UMF 9.) Although Nationstar attempted to help Plaintiff avoid foreclosure, Plaintiff did nothing to tender to reinstate the loan. (UMF 10.)

Plaintiff submitted multiple loan modification applications, all of which were denied. (UMF 14, 15, 19, 21, 23, 24, 32, 33.) A Notice of Trustee's Sale ("NOTS") was recorded on January 19, 2023, as Document No. 2023-0005092 in the Official Records of Contra Costa. (UMF 30.) The NOTS was published and posted. (UMF 31.) Six days before the scheduled foreclosure sale, Plaintiff filed the underlying complaint for damages and equitable relief. (UMF 35.) His request for a TRO in connection with his complaint was denied. (UMF 36.)

The Property was foreclosed on June 14, 2023. (UMF 38.)

Analysis

Wrongful Foreclosure

Defendant moves for summary judgment on Plaintiff's wrongful foreclosure claim on the grounds that Plaintiff did nothing to tender to reinstate the loan and that there was no prejudicial irregularity in the foreclosure process.

"The basic elements of a tort cause of action for wrongful foreclosure track the elements of an equitable cause of action to set aside a foreclosure sale." (*Miles v. Deutsche Bank National Trust Co.* (2015) 236 Cal.App.4th 394, 408.) "They are: '(1) the trustee or mortgagee caused an illegal, fraudulent, or willfully oppressive sale of real property pursuant to a power of sale in a mortgage or deed of trust; (2) the party attacking the sale (usually but not always the trustor or mortgagor) was prejudiced or harmed; and (3) in cases where the trustor or mortgagor challenges the sale, the trustor or mortgagor tendered the amount of the secured indebtedness or was excused from tendering.'" (*Ibid.*) "[M]ere technical violations of the foreclosure process will not give rise to a tort claim; the foreclosure must have been entirely unauthorized on the facts of the case." (*Id.* at p. 409.) A plaintiff is "required to allege tender of the amount of ... indebtedness in order to maintain any cause of action for irregularity in the sale procedure." (*Abdallah v. United Savings Bank* (1996) 43 Cal.App.4th 1101, 1109.)

In opposition, Plaintiff argues that "Plaintiff's claim for wrongful foreclosure is a legal claim for damages and Plaintiff is not requesting equitable relief. ... Therefore, since Plaintiff is not seeking equitable relief by way of setting aside a foreclosure sale, Plaintiff should not be required to 'do equity' by tendering any amount of indebtedness." (Opp. at 5:9-12.) This is not the law. The tender rule applies equally to damage claims. Although based upon equitable principles, the requirement that the borrower tender the amount of the indebtedness is not limited to equitable set-aside actions; it has also been found applicable to legal claims for damages for wrongful foreclosure. (See, e.g., *Chavez v. Indymac Mortgage Services* (2019) 219 Cal.App.4th 1052, 1062; *Shuster v. BAC Home Loans Servicing, LP* (2012) 211 Cal.App.4th 505, 512; *Abdallah, supra*, at p. 1109.)

The element of tender is not required in at least four discrete situations, namely, where (1) the challenge is to the validity of the underlying indebtedness, (2) the person challenging the sale is asserting a counterclaim or setoff against the beneficiary, (3) it would be inequitable to impose the condition, or (4) the trustee's deed of sale is void. (*Lona, supra*, at pp. 112-113). None of those exceptions apply here. Even if the sale were improperly noticed, that would make the sale voidable

and still subject to the tender requirement. (*Id.* at p. 112 [“[A]s a condition precedent to an action by the borrower to set aside the trustee’s sale on the ground that the sale is voidable because of irregularities in the sale notice or procedure, the borrower must offer to pay the full amount of the debt for which the property was security.”].)

Plaintiff also argues that a question of fact remains as to whether the sale was properly conducted, specifically arguing that there is a dispute of fact as to whether Plaintiff received notice of his fourth loan modification denial. While it is undisputed that Nationstar sent a letter denying Plaintiff’s fourth application for a loan modification (Nationstar Decl. at ¶ 27, Exs. 20, 21), Plaintiff testified that he did not receive the letter (Pomeroy Decl. at Ex. FF [Gupta Depo.] at 97:4) and counsel for Plaintiff also submitted testimony that she did not receive the denial letter (Shapero Decl. at ¶ 8.) Construing the evidence in favor of Plaintiff, at best this presents a “mere technical violation[] of the foreclosure process,” if that. Indeed, the Court presumes that Plaintiff had knowledge of Nationstar’s denial given that he filed his Complaint on June 8, 2023 and moved for a temporary restraining order to enjoin the foreclosure sale. Plaintiff has not demonstrated a genuine dispute of material fact with respect to the procedural regularity of the foreclosure process.

Defendant is entitled to summary adjudication on Plaintiff’s claim for wrongful foreclosure.

Business & Professions Code § 17200

Finally, Defendant moves for summary adjudication on Plaintiff’s 17200 claim on several grounds.

California’s unfair competition law (UCL), Cal. Bus. & Prof. Code § 17200 *et seq.*, prohibits unfair competition, which is defined as any unlawful, unfair or fraudulent business act or practice. § 17200. A claim may be brought under the UCL by a person who has suffered injury in fact and has lost money or property as a result of unfair competition. (Bus. & Prof. Code § 17204.) Therefore, to establish standing under the UCL, a plaintiff must (1) establish a loss or deprivation of money sufficient to qualify as injury in fact, *i.e.*, economic injury, and (2) show that the economic injury was the result of, *i.e.*, caused by, the unfair business practice that is the gravamen of the claim. (See *Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 337 (“*Kwikset*”).) Restitution is the only form of damages available under the UCL. (See *Korea Supply Co. v. Lockheed Martin Corp.* (2002) 29 Cal.4th 1134, 1147.)

Here, the FAC specifically predicates Plaintiff’s 17200 claim on the alleged violations of HBOR in his first and second causes of action. (FAC at ¶ 52.) However, Plaintiff explicitly withdrew those causes of action in opposition. Furthermore, as discussed above, he has not demonstrated a genuine dispute of material fact with respect to his wrongful foreclosure claim.

Defendant is entitled to summary adjudication on Plaintiff’s UCL claim.

Evidentiary Objections

The Court rules only on those objections material to the Court’s ruling on the motion for summary judgment. (Code Civ. Proc. § 437c(q).) Here, there were none.

5. 9:00 AM CASE NUMBER: C24-02221
CASE NAME: JOHN ROE A.H. VS. WEST CONTRA COSTA UNIFIED SCHOOL DISTRICT, PUBLIC ENTITY
***HEARING ON MOTION FOR DISCOVERY SILICON VALLEY MONTEREY BAY, SCOUTING AMERICA'S COMPLIANCE WITH SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS**
FILED BY: ROE A.H., JOHN

TENTATIVE RULING:

Plaintiff John Roe A.H. seeks to compel compliance with a business records subpoena served on Silicon Valley Monterey Bay, Scouting America (SVMBSA). The Court received no opposition by any Defendant or from SVMBSA.

This case involves alleged childhood sexual abuse by a teacher. This teacher was previously involved with SVMBSA, and so Plaintiff has sought records relating to allegations of sexual abuse against minors while involved with SVMBSA.

The subpoena sought “(1) all employment and volunteer records, including reprimands, complaints, claims, payroll records, commendations, recommendations, disciplinary actions, termination or dismissal records, approvals, applications, communications, documents, reviews, notations, personnel files, demands, performance evaluations, credentials, and photographs; and (2) all yearbooks, photographs, troop lists, or other documents reflecting programs in which Guinto participated from 2005 through 2010.”

SVMBSA responded by producing “screenshots of limited personnel records, a civil complaint, and a 2008 Santa Clara County Council roster.” SVMBSA failed to respond to meet and confer efforts.

SVMBSA’s response was clearly deficient. The Court has concerns that aspects of the second request may implicate privacy rights of third parties, including minors, and so cannot compel full compliance. Otherwise, however, SVMBSA must produce all relevant, responsive documents without redactions. In other words, SVMBSA must produce all documents called for in the subpoena, but may redact names and pictures of minors, subject to further discussions involving a protective order if Plaintiff provides compelling reasons for limited discovery of such information.

Plaintiff also seeks sanctions in the amount of \$3,060.00. The proffer for this amount is reasonable and will be granted.

6. 9:00 AM CASE NUMBER: C25-00481
CASE NAME: MAURO OILVA VS. AMERICAN HONDA MOTOR CO., INC.
***HEARING ON MOTION IN RE: STRIKE OR TAX COSTS**
FILED BY: AMERICAN HONDA MOTOR CO., INC.

TENTATIVE RULING:

Defendant American Honda Motor Co. (Honda) moves to strike, or in the alternative, tax costs. Plaintiff Mauro Oilva accepted Honda’s offer to compromise pursuant to Code of Civil Procedure section 998. Plaintiff has since filed a Memorandum of Costs in the amount of \$2156.60 and a Motion for Attorney’s Fees, which is set for hearing on September 17, 2026.

Honda disputes five costs:

- (1) \$5.95 in filing and motion fees, for the Notice of Settlement

(2) \$150.00 for the jury fees deposit

(3) \$79.50 for service of process for a deposition that ultimately did not proceed

(4) \$10.25 for electronic filing and service fees

(5) \$1,070.00 for mediation (\$920.00) and court appearance professionals (\$150.00)

The party filing the cost memorandum bears the initial burden of showing that the statute allows the item and is proper on its face. (*Ladas v. California Sate Auto. Assn.* (1993) 19 Cal.App.4th 761, 774-776.) For items that are expressly permitted by statute, the burden is on the objecting party to establish that the costs were not necessary or reasonable, based on evidence. (*Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1224.) For items that are not expressly allowed, the burden of proof is on the party claiming them to show that they were reasonable and necessary. (*Foothill-DeAnza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29.)

The Court addresses each contested cost in turn.

Filing and Motion Fees

Honda moves to strike or tax only one item from this category. Honda argues that the filing of the Notice of Settlement was not part of the “commencement and prosecution” of the action. The Court does not agree. The Notice of Settlement was part of the litigation process—notifying the Court that the case would no longer proceed. This minimal cost was not excess or inappropriate and it is a normal cost of litigation. The Court declines to tax or strike this cost.

Jury Fee Deposit

Honda argues that because the case did not proceed to trial, the posting of jury fees was not a recoverable cost. The Code of Civil Procedure requires an advance jury fee deposit, and this is part of the requirement for jury fees. Honda does, however, identify that jury fee deposits are refundable. Oilva’s failure to request this refund should not be shifted to Honda. The Court will tax this cost.

Service of Process

Honda seeks to tax \$79.50 for service of a deposition notice where it was “unilaterally noticed without any meet and confer effort.” Honda has not explained why this renders the cost not recoverable under the Code of Civil Procedure. The Court declines to tax or strike this cost.

Electronic and Service Costs

Honda argues that \$10.25 was improperly claimed but does not explain why. It appears this was the electronic service of the Notice of Settlement. As discussed above, this was part of the litigation and will not be taxed.

Oilva, in the opposition, discusses costs related to courtesy copies served on the Court, but Honda’s argument regarding these costs was buried in a footnote. That hardly serves to carry its burden and

the Court declines to tax these costs.

Other Costs

Honda seeks to task costs related to specially appearing attorneys on two occasions, for \$75.00 each. While Oilva argues that these costs are less than would be incurred by attorneys appearing on their own behalf, Honda is correct that these are properly categorized as attorney's fees, not costs, and they will be taxed.

Honda also seeks to strike the \$920.00 sought for the mediation both because the parties, in agreeing to the mediation, agreed to bear their own costs, and because the mediation had multiple cases. On the first issue, the Court does not see an initial agreement to split the cost of mediation as precluding the cost as recoverable at the close of litigation. On the second issue, the Court agrees that Plaintiff may not gain the benefit of splitting a mediation fee with another case but recover the entire amount in a single litigation. That the invoice identified this case is insufficient to carry Plaintiff's burden. The Court will tax half of the \$920.00.

The Court therefore will tax \$760 of the costs memorandum.

7. 9:00 AM CASE NUMBER: C25-02093
CASE NAME: YOSALIN GONZALEZ VS. WESTERN STONE & METAL CORP.
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: MICHAEL FREIMAN, ESQ.**
FILED BY: GONZALEZ, YOSALIN
TENTATIVE RULING:

The Court has reviewed the Motion and it is **granted**.

8. 9:00 AM CASE NUMBER: C25-02588
CASE NAME: COOL BEANS ENTERTAINMENT LLC, VS. CHRISTINE SORIANO
***HEARING ON MOTION IN RE: PRELIMINARY INJUNCTION**
FILED BY: COOL BEANS ENTERTAINMENT LLC,
TENTATIVE RULING:

Counsel to appear (in person or by Zoom).

This is a Preliminary Injunction motion centering on control and operation of several residential care facilities for elders. What caught the Court's attention is the point that both sides are proposing the same structural solution – namely, the hiring of professional third-party management companies to run the facilities (and their immediate finances) pending litigation.

At the June 25, 2026, hearing the Court directed the Parties to provide an update of their Meet and Confer Process by July 16, 2026.

The Parties on July 16, 2026, submitted a joint statement which provided that the Parties were actively evaluating potential options, making progress in their discussions, and would provide a

further status update in one on July 23, 2026.

On July 23, 2026, Plaintiff submitted an update stating that no resolution has been reached between the Parties and requests the Court to rule on the TRO.

The Parties are ordered to appear to provide the Court an update on the ongoing discussions and to discuss availability for a new TRO hearing date.

The Court again extends an invitation to the DSS and the Lenders, if they see fit, to involve themselves directly in this litigation, by formal intervention if appropriate, or at least by friend-of-the-court input.

9. 9:00 AM CASE NUMBER: C25-02730
CASE NAME: TADEUSZ WYRZYKOWSKI VS. CSW CONSTRUCTION GROUP
***HEARING ON MOTION IN RE: TO RESCIND, BASED ON CRIME, ORDER**
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff's Demand to Rescind Crimes Based Order.

Plaintiff's Motion is **denied** as set forth below.

Procedural History

Plaintiff filed his Complaint on September 29, 2025. The operative First Amended Complaint (FAC) was filed on October 20, 2025. On December 1, 2025, Defendant filed a Declaration of Demurring Party in Support of Automatic Extension. On December 8, 2025, Plaintiff filed a Proof of Service of Summons that asserts that the summons, complaint, and FAC were personally served on Defendant on October 18, 2025.

On January 20, 2026, Plaintiff filed a Request for Entry of Default on the Complaint filed on September 29, 2025. The Default was entered on that same date. On January 23, 2026, Defendant filed a motion to set aside the default. On January 26, Plaintiff filed a motion to sustain default, as well as a motion to strike the December 1 declaration by Defendant's counsel.

On April 30, the Court granted Defendant's motion to set aside the default. On May 7, the Court denied Plaintiff's motion to sustain the default and Plaintiff's motion to strike the declaration.

Analysis

Plaintiff's motion consists of a single page with 19 pages of attached documents. The 'motion' references several Penal Code sections but does not explain what they are or how they apply to these civil proceedings. In fact, the whole 'motion' is an incoherent rambling with no discernable focus.

It appears to ask the Court to rescind its June 18, 2026, Order and uphold the earlier default. In other words, it appears to be a motion for reconsideration.

The Court may not entertain a motion for reconsideration absent a showing of new or different facts,

law, or circumstances. (Code of Civil Procedure § 1008(a)-(b); *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1098.) “The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc. § 1008(a).)

Plaintiff fails to submit any declaration, much less one that includes the above information. It also fails to indicate what ‘new or different facts, law, or circumstances’ support a motion for reconsideration.

Plaintiff’s motion is **denied**.

In Opposition, Defendants requests the Court consider whether sanctions are appropriate under California Code of Civil Procedure sections 128.5 and 128.7.

Initially, the Court notes that any request for affirmative relief made in an opposition is improper and will not be considered by the Court. “An application for an order is a motion.” (Code Civ. Proc. § 1003.) Motions must follow the filing and service requirements set forth in the Code. (See e.g. Code Civ. Proc. § 1005, 1010.) To the extent [Party] seeks affirmative relief, it is required to file a motion seeking such relief.

In addition, sanctions under both Code of Civil Procedure sections have strict procedural requirements including a ‘safe harbor’ provision which requires the party seeking sanctions to serve the ‘offending party’ with the motion for sanctions. If Defendants believe that Plaintiff’s actions are sanctionable they need to follow the proper procedures for seeking sanctions.

The Court will not consider a request for sanctions made in an opposition that has not adhered to any of the procedural requirements for such a request.

Conclusion

Plaintiff’s Demand to Rescind Crimes Based Order is **denied**.

10. 9:00 AM CASE NUMBER: C25-02864
CASE NAME: KEVIN SUAREZ VS. PBF ENERGY WESTERN REGION LLC
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO KATRINA M. KREBS FOR DEFS
FILED BY: PBF ENERGY WESTERN REGION LLC
TENTATIVE RULING:

The Court has reviewed the Application and it is **approved**.

11. 9:00 AM CASE NUMBER: C25-02864
CASE NAME: KEVIN SUAREZ VS. PBF ENERGY WESTERN REGION LLC
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO MEGAN R. BRILLAULT FOR DEFS
FILED BY: PBF ENERGY WESTERN REGION LLC
TENTATIVE RULING:

The Court has reviewed the Application and it is **approved**.

12. 9:00 AM CASE NUMBER: C25-03121

CASE NAME: JACOB CANALE VS. KELLY BOZARTH

***HEARING ON MOTION IN RE: FOR SANCTIONS**

FILED BY: BOZARTH, KELLY

TENTATIVE RULING:

Before the Court is Defendants' Center for Social Dynamics, LLC, and Kelly Bozarth's Motion for Sanctions.

Defendants' Motion for Sanctions is **denied**.

Procedural Background

Plaintiff filed the initial Complaint on October 23, 2025. It asserted a single cause of action for violation of the Private Attorneys General Act, California Labor Code § 2698 et seq.

On March 16, 2026, Defendants filed a demurrer and a motion to strike directed toward the Complaint. Thereafter, on April 15, 2026, Defendants filed the instant motion for sanctions arguing that Plaintiff's Complaint "lack[s] facial merit of any kind."

The hearings on Defendants' demurrer and motion to strike were scheduled for July 23, 2026. The Court issued its tentative rulings on July 22. The tentative ruling overruled the demurrer as to Defendant Center for Social Dynamics and sustained the demurrer as to Ms. Bozarth – with leave to amend. The tentative ruling denied the motion to strike. No party contested the tentative rulings – so they became the order of the Court as of 4:00 p.m. on July 22. (Local Rule 3.43 (2).)

Legal Standard

"Under section 128.7, an attorney or unrepresented party who files a pleading, motion, or similar paper must sign the document, which impliedly certifies the pleading has legal and factual merit." (*Levy v. Blum* (2001) 92 Cal.App.4th 625, 636.) "The signature reflects the certification of the attorney or unrepresented party that the pleading is not being presented for an improper purpose; the legal contentions are warranted by law or nonfrivolous argument for extension, modification or reversal of existing law; the allegations and factual contentions have evidentiary support or are likely to have such support after a reasonable opportunity to further investigate; and the denials of factual contentions are warranted by the evidence." (*Ibid.*)

In short, "Code of Civil Procedure section 128.7 allows sanctions to be imposed upon attorneys who present to the court claims, defenses or legal contentions not warranted by existing law, and allows sanctions against parties and attorney when pleadings are presented primarily for an improper purpose, such as to harass or cause a needless increase in the cost of litigation." Section 128.7 imposes a lower threshold for sanctions against an attorney than section 128.5. "Section 128.7 'requires only that the conduct be 'objectively unreasonable'" (*Burkle v. Burkle* (2006) 144 Cal.App.4th 387, 401.)

Analysis

“Section 128.7 provides a trial court with the discretionary authority to impose sanctions when a party files a pleading that is factually or legally frivolous.” (*Peake v. Underwood* (2014) 2277 Cal.App.4th 428, 432.)

The Court, in overruling Defendants’ demurrer and denying their motion to strike, has already determined that the Complaint in this matter is not factually nor legally frivolous. The Defendants did not contest that determination – and that decision became the Order of the Court on July 22. Accordingly, Defendants’ motion for sanctions must fail.

In Opposition, Plaintiff argues that he should be awarded sanctions for opposing the motion. The Code states: “If warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney’s fees incurred in presenting or opposing the motion.” The Court finds that sanctions against Defendants are not warranted under the circumstances of this case.

Conclusion

Defendants’ Motion for Sanctions is **denied**.

13. 9:00 AM CASE NUMBER: C25-03530

CASE NAME: JOHN RUBIO VS. SUSANNE KIM

HEARING ON DEMURRER TO: COMPLAINT

FILED BY:

TENTATIVE RULING:

This hearing was vacated.

14. 9:00 AM CASE NUMBER: C26-00119

CASE NAME: FRANK YOUNGMAN, IV VS. DAVID TU

***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**

FILED RE: MICHAEL R. WILLATS

FILED BY: ENCORE GROUP (USA) LLC, A DELAWARE LIMITED LIABILITY COMPANY

TENTATIVE RULING:

The Court has reviewed the Application and it is **approved**.

15. 9:00 AM CASE NUMBER: C26-01170

CASE NAME: JOLENE SOLIMAN VS. FCA US LLC

***HEARING ON MOTION IN RE: COMPEL INITIAL DISCLOSURES**

FILED BY: SOLIMAN, JOLENE

TENTATIVE RULING:

Plaintiff Jolene Soliman seeks to compel Defendant FCA US LLC to provide complete initial disclosures. Defendant opposed the Motion, stating that it provided all initial disclosures, absent the ones for

which it seeks a stipulated protective order. The Court received no timely reply. The Court is therefore left with an un rebutted statement that FCA has complied with its obligations, other than a pause in producing certain documents pending a stipulated protective order. The parties are ordered to meet and confer on an appropriate protective order so that FCA may complete its production. The Motion is otherwise **denied**.

16. 9:00 AM CASE NUMBER: MSC16-00996
CASE NAME: ELY VS. WALNUT CREEK ASSOCIATES 2 [PAGA]
HEARING ON SUMMARY MOTION CONTINUED FROM 6/4/2026
FILED BY:

TENTATIVE RULING:

Before the Court is a motion for summary judgment or, in the alternative, summary adjudication, filed by defendants Walnut Creek Associates 2, Inc. (DBA Walnut Creek Honda), Gordon S. Walton, Steve Sklavos and David Trzesniewski. The motion for summary judgment is **denied**, as set forth below. However, the **motion for summary adjudication is granted with respect to the fourth, fifth, sixth, and seventh issues.**

Since the previously-set June trial date was vacated at the initial hearing on this motion, the Court sets a trial setting conference on September 9, 2026, at 8:30 a.m. in this Department. Prior to that time, parties shall file statements in compliance with California Rules of Court, rule 3.725. The statements shall include the date on which the five-year statutory deadline is expected to run pursuant to Code of Civil Procedure, §§ 583.310, et seq.

I. Background

Defendant Walnut Creek Associates 2, Inc. employed plaintiff, Landen Ely, as an automobile technician at its car dealership. On May 11, 2016, plaintiff mailed his notice under the Labor Code Private Attorneys General Act of 2004 (Lab. Code, § 2698 et seq., hereafter “PAGA”) to the Labor and Workforce Development Agency (LWDA) and defendants. (Separate Statement of Undisputed Material Fact, hereinafter “SSUMF,” Fact. No. 1; Plaintiff’s Response to SSUMF, hereinafter “plaintiff’s response” or “PAF,” No. 19.) The notice, dated May 11, 2026, states:

This investigation request and notice of California Labor Code violations concerns the systematic failure by Walnut Creek Honda to pay current and former California non-exempt employees in conformance with the California Labor Code and Wage Orders. At the core of Walnut Creek Honda violations is a policy of failing to keep accurate time and payroll records; requiring, suffering or permitting employees to perform unpaid work outside their scheduled work time; failing to pay for downtime between piece rate employment, failing to pay premium wages for all hours worked in excess of eight (8) hours and 12 hours in a day and in excess of eight (8) hours on any seventh day of a workweek; using improper federal averaging in lieu of required California calculations regarding piece rate payments; failing to pay 1.5 times the regular rate for overtime work, refusing to authorize and permit rest periods or to provide premium wages in lieu thereof; failing to provide PAID rest periods pursuant to the flag rate system which compensates employees only for work provided, failing to provide timely, complete and uninterrupted meal periods free of duty and auto-deducting wages for meal periods not provided or taken; failing to pay rest and meal

period premiums to which employees are entitled for being denied rest and meal periods; requiring employees to purchase tools and garments necessary for work without reimbursement; failing to provide accurate wage statements and failing pay of all wages owed upon separation from employment. These violations are a uniform policy applied to all non-exempt workers at Walnut Creek Honda.

[...]

If no action is taken within 30 days, we will assume that we may pursue this action under the theories described above [...].

Plaintiff then filed this action on May 24, 2016, alleging a single cause of action under PAGA. The cause of action enumerates the following statutory violations, “among others:” Labor Code, §§ 201, 202, 203, 206, 223, 226, 226.3, 226.6, 226.7, 226.8, 256, 510, 512, 558, 1174, 1185, 1194.2, 1197, 1197.1, 2699 *et seq.*, and applicable IWC Wage Orders. (Complaint, ¶18.)

With respect to exhaustion of remedies, plaintiff states that the PAGA notice requirements “will have been satisfied” prior to service of the complaint, and that the complaint would be amended “to confirm completion.” (Complaint, ¶42.) There is no record of plaintiff having amended the complaint. Accordingly, the complaint fails to allege complete compliance with the Labor Code section 2699.3 notice and exhaustion requirements. (SSUMF Fact Nos. 2 and 4, and plaintiff’s response.) Nevertheless, the LWDA has not sent any notice to plaintiff or intervened in this action. (PAF, Fact No. 19, and Defendants’ Response to Plaintiff’s Separate Statement, hereinafter “defendants’ response,” filed May 22, 2026.)

Defendants filed an initial answer on September 28, 2016 and a first amended answer on January 5, 2017, both of which included an affirmative defense that plaintiff failed to meet PAGA’s necessary filing and notice requirements. (SSUMF Fact No. 3, and plaintiff’s response.) Defendants moved, unsuccessfully, to compel arbitration. For various reasons, including the pending appeal of the order denying the motion to compel arbitration, as well as various developments in the law with respect to arbitration and PAGA claims, this case remained stayed until October of 2024. (See Minute Order, filed October 10, 2024.)

II. Motion and Opposition

Defendants now move for summary judgment or summary adjudication in the alternative, arguing that plaintiff lacks standing since he failed to exhaust administrative remedies, that unpaid wages cannot be recovered under PAGA, that the penalties sought can only go back one year before the PAGA notice and plaintiff seeks three years, and the recent case of *Mora v. C.E. Enters., Inc.* (2025) 116 Cal.App.5th 72 (“*Mora*”) bars plaintiff’s entire theory of liability. Defendants list nine issues for adjudication, each related to these arguments.

In support of the motion, defendants provide a declaration from counsel which attaches excerpts and exhibits from the deposition of Alan Yun, the Person Most Qualified who testified on behalf of Walnut Creek Honda, a declaration of Alan Yun, and a request for judicial notice attaching plaintiff’s PAGA notice. As required with a motion for summary judgment, defendants also provide a statement of material facts they contend are undisputed.

Plaintiff opposes the motion, except with respect to the claims pursuant to Labor Code § 558, § 226.8, and § 2810, claims plaintiff concedes “may be struck.” (Memorandum of Points and Authorities in Support of Opposition, 19, fn. 5.) Plaintiff argues he exhausted his remedies and, in any event, defendants “waived” the exhaustion defense. He also contends PAGA permits him to recover

three years of penalties pursuant to Labor Code section 203. Finally, plaintiff argues the compensation system was not legal, and that *Mora* is not controlling. In support of the opposition, plaintiff responds to defendants' SSUMF and also submits his own additional facts (PAF, Fact Numbers 19-32).

With their reply defendants respond to the plaintiff's additional facts and argue plaintiff fails to meet his burden to overcome summary judgment.

Prior to the initial hearing on summary judgment on June 4, 2026, Judge Treat tentatively denied the motion for summary judgment because he declined to construe the exhaustion issue as decisive, and also denied the motion for summary adjudication based on the procedural grounds that summarily adjudicating parts of a cause of action is not permitted. According to this Judge's understanding, at the hearing, Judge Treat instructed parties to provide supplemental briefing on the issues raised by *Mora v. C.E. Enterprises, Inc.* (2025) 340 Cal.Rptr.3d 368, and informed the parties that their supplemental briefing would substitute for the opening briefs in the trial of this matter, which was scheduled to proceed on June 22, 2026 at the time. He vacated the trial date and set a supplemental briefing schedule, as well as this date for continued hearing.

III. Evidentiary Matters

No evidentiary objections were filed with the initial papers. Defendants requested judicial notice of the complaint, their answer, and their amended answer, as well as the plaintiff's PAGA notice, a copy of which is attached to the Volume of Evidence in Support of the Motion. Defendants' request is **granted**.

In support of his supplemental brief, plaintiff requests judicial notice of (A) certain evidence submitted to the trial court in *Mora v. C.E. Enterprises, Inc.*, Ventura County Superior Court Case No. 56-2018-00521275-CU-OE-VTA; (B) the trial court's Statement of Decision which was later affirmed; and (C) Appellant Gustavo Mora's Opening Brief in the appellate court, prior to the opinion *Mora v. C.E. Enterprises, Inc.* (2025) 340 Cal.Rptr.3d 368. Plaintiff's request is **granted**.

In response to the evidence supporting plaintiff's supplemental ("opening") brief, defendants object to various content in the Declaration of David Fairris, which is attached to the Declaration of Elizabeth R. Klos, filed July 2, 2026. The objections are nonspecific, citing multiple paragraphs and, at times, only objecting "to the extent" certain qualifications are met. The objections are **overruled**.

IV. Standard

To be entitled to judgment as a matter of law, a defendant must show by admissible evidence that the action has no merit. (Code Civ. Proc., § 437c, subd. (a).) To obtain summary judgment, as opposed to summary adjudication, a defendant must show conclusively that all of the plaintiff's causes of action or legal theories fail as a matter of law. (See *Jimenez v. Protective Life Ins. Co.* (1992) 8 Cal.App.4th 528, 534.)

To be entitled to summary adjudication, a moving party must show that it prevails on "one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty." (Code Civ. Proc., § 437c (f)(1).) Summary adjudication "shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (*Ibid.*) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

A defendant moving for summary judgment or adjudication can meet its burden by

demonstrating one or more elements cannot be established, or by showing a complete defense. (Code of Civ. Proc., § 437c, subd. (o).) The scope of the moving party's initial burden is "framed by the pleadings." (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1102.) Once the moving defendant has met that burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material fact exists. (Code of Civil Procedure § 437c, subd. (p)(2).) Although the burden of production may shift, the moving party always bears the burden of persuasion. (*Aguilar v. Atlantic Richfield* (2001) 25 Cal.4th 826, 850.)

V. Discussion

A. MSJ (Issues 1-2: Failure to Exhaust Administrative Remedies by Prematurely Filing Suit)

Defendants argue that plaintiff failed to exhaust his administrative remedies. Defendants assert, therefore, that the Court lacks jurisdiction and summary judgment is warranted.

A PAGA plaintiff must give written notice to the Labor and Workforce Development Agency ("LWDA") of the specific provisions of the Labor Code alleged to have been violated, including the facts and theories to support the alleged violation. Thereafter, if the agency fails to provide timely or any notification that it will investigate the allegations, the aggrieved employee may commence the PAGA action after waiting the required number of days. (Labor Code, § 2699.3 (a)(2)(A); *Esparza v. Safeway, Inc.* (2019) 36 Cal.App.5th 42, 59; *Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 81.)

The version of Labor Code § 2699.3, subdivision (a) in effect at the time of plaintiff's notice here stated as follows (emphasis added):

A civil action by an aggrieved employee pursuant to subdivision (a) or (f) of Section 2699 alleging a violation of any provision listed in Section 2699.5 shall commence *only after the following requirements have been met:*

(1)The aggrieved employee or representative shall give written notice by certified mail to the Labor and Workforce Development Agency [...].

(2)(A) The agency shall notify the employer and the aggrieved employee or representative by certified mail that it does not intend to investigate [...]. Upon receipt of that notice *or if no notice is provided within 33 calendar days of the postmark date of the notice* given pursuant to paragraph (1), the aggrieved employee may commence a civil action pursuant to Section 2699.

The notice requirement has been found to be "a condition of suit," without which an employee cannot bring a PAGA action. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 545.) Here, plaintiff did provide the LWDA notice, but failed to wait the requisite number of days (33) before filing suit. The notice here was sent on May 11, 2016 and plaintiff filed suit just 13 days later on May 24th. This was premature, a fact not in dispute.

Defendants argue this issue is dispositive, citing several cases including *Caliber Bodyworks, Inc. v. Superior Court*, wherein the appellate court found the trial court should have sustained the defendant's demurrer due to the plaintiffs' failure to plead compliance with PAGA's prefiling notice requirements. (*Caliber Bodyworks, Inc. v. Superior Court* (2005) 134 Cal.App.4th 365, 383, overruled on other grounds by *ZB, N.A. v. Superior Court* (2019) 8 Cal.5th 175, 196, fn. 8.)

Plaintiff does not address *Caliber*, but the Court notes there is some grounds for distinction

given that plaintiff Ely here did plead partial compliance, if not complete compliance, with the notice requirements. Ely's complaint states, in relevant part:

42. The pre-lawsuit notice requirements set forth in Labor Code § 2699.3, including written notice by certified mail to .all DEFENDANTS and to the Labor and Workforce Development Agency detailing the Labor Code and IWC Wage Order violations averred herein, will have been satisfied by PLAINTIFF prior to service of this Complaint. PLAINTIFF will amend his Complaint at that time to confirm completion.

In *Caliber Bodyworks, Inc.*, plaintiffs' "operative complaint [did] not mention the [PAGA]." (*Caliber, supra*, 134 Cal.App.4th at 370.) The Court concluded that, at least on demurrer, plaintiffs' failure to plead compliance with the Labor Code § 2699.3(a) administrative prerequisites to filing suit was fatal to the PAGA claims. (*Caliber*, at 381-382.) While the court in *Caliber* recognized that, given the posture there (on demurrer), and statutory provisions relating to amendment, that plaintiff would be able to seek leave to amend after having complied with the LWDA. (*Id.* at 383, fn.18.)

There is little California authority on point, but in a recent decision, *Brown v. Dave & Buster's of California, Inc.* (2025) 116 Cal.App.5th 164, the Second District Court of Appeal addressed the question of how to construe premature filing of a PAGA lawsuit. In that case, the trial court granted an employer's motion for judgment on the pleadings based on claim preclusion. Plaintiff Brown's PAGA suit followed a final judgment on Andrade's PAGA suit. Accordingly, the employer seeking to invoke claim preclusion took the position that the prior PAGA judgment was *valid*, and premature filing was *not* a substantial defect, while the employee (Brown) sought to *undermine* the judgment's validity so that her suit would not be barred.

The *Brown* court stated, "only one issue is before us: did Andrade's [the first PAGA plaintiff's] failure to adhere strictly to the 65-day waiting period for her amended claims defeat Buster's [employer's] claim preclusion argument?" The *Brown* court went on to discuss federal district court cases which have taken a permissive approach to the exhaustion requirements, overlooking a plaintiff's failure to plead exhaustion based on the lack of any reason to "punish plaintiffs" for acting too quickly. (*Brown, supra*, 116 Cal.App.5th at 171.) While the federal cases are not binding here, they appear to generally support the position that the prematurity defect does not bar suit.

The *Brown* court discussed the policy of substantial compliance, its application with respect to the Government Claims Act, and found that it also applied on the facts in *Brown*. (*Brown, supra*, 116 Cal.App.5th at 172 ["Andrade's failure to wait 65 days was a harmless defect."].)

While plaintiff's waiver argument misses the mark (waiver involves intentional relinquishment or abandonment of a known right, but defendants have done nearly nothing except seek to compel arbitration here), he is correct to point out that this case has been pending (albeit stayed) for almost ten years and the LWDA has never intervened. Accordingly, the Court finds strict compliance with the exhaustion requirements was excused.

Defendants have not met their burden to show entitlement to judgment as a matter of law. Accordingly, while the facts underlying summary judgment are not in dispute (see SSUMF Fact Nos. 1-4, and plaintiff's response), the motion must be denied on Issues 1-2.

B. Motion for Summary Adjudication (Issues 3-9)

Previously, Judge Treat ruled that summary adjudication was not warranted based on the procedural problem of the issues not completely resolving any of the items listed in the statute (summary adjudication "shall be granted only if it completely disposes of a cause of action, an

affirmative defense, a claim for damages, or an issue of duty”). (Code Civ. Proc., § 437c (f)(1).)

Judge Treat suggested that the questions raised by defendants are better suited for motion in limine, motion to strike, or stipulation. Upon further review, this Judge (Judge Campins) finds it appropriate, in the context of a PAGA claim, to grant adjudication as to several issues raised, as set forth below.

1.MSA (Issue 3) – Penalties for Statutory Violations not in PAGA Notice)

Defendant argues plaintiff’s claim pursuant to Labor Code sections 206, 226.3, 226.8, 2810, and 2810.5 are barred based on plaintiff’s failure to specifically cite these sections in the PAGA notice.

It has been stated that PAGA's prelitigation notice requirement is “minimal” and the notice must simply be specific enough such that the LWDA and the defendant can glean the underlying factual basis for the alleged violations. (*Ibarra v. Chuy & Sons Labor, Inc.* (2024) 102 Cal.App.5th 874, 882, quoting *Gunther v. Alaska Airlines, Inc.* (2021) 72 Cal.App.5th 334, 350-351.) A written notice is sufficient so long as it contains some basic facts about the violations, such as which provision was allegedly violated and who was allegedly harmed. (*Ibid.*)

Plaintiff concedes that penalties under Labor Code sections 226.8 and 2810 are not properly asserted here. He further does not *genuinely* dispute that *citations* to the other code sections were absent from his notice.

Instead, plaintiff reiterates the language from his notice which sets forth a narrative regarding a “systematic failure” to timely and accurately pay wages. (See SSUMF, Fact No. 5, and plaintiff’s response.) The letter states that the alleged statutory violations “included,” but were “not limited to” those listed in the letter, and did “not include all of the derivative penalties.” (See Volume of Evidence in Support of Motion, Request for Judicial Notice, Ex. A.)

Plaintiff argues that where one statute merely provides penalties for noncompliance with another statute (like Labor Code, section 226.3 providing penalties associated with violations of Labor Code, section 226), the citation to the underlying violation is sufficient. Here, for example, the failure to provide accurate wage statements in compliance with section 226 was articulated in the PAGA notice. Accordingly, plaintiff avers that it is not necessary to also discuss Labor Code, section 226.3 in the notice.

Plaintiff is at least correct on this point concerning the derivative nature of some cited statutes and, since summary adjudication may only be granted “if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty,” (Code Civ. Proc., § 437c, subd. (f)), the motion is denied as to Issue 3.

2.MSA (Issue 4 – Misclassification)

Defendants assert, as the fourth issue in the Notice of Motion, that they are entitled to summary adjudication as to any request for penalties under Labor Code section 226.8 because the complaint contains no "facts and theories" describing any unlawful misclassification as an independent contractor and there are no facts to support the notion that the subject employees were ever so misclassified.

In support of this issue, defendants assert Fact No. 7 which states, “Plaintiff’s PAGA notice to the LWDA, dated May 11, 2016 does not allege any facts or theories describing any unlawful

misclassification as an independent contractor.” Plaintiff does not dispute the fact.

Summary adjudication is granted as to Issue 4.

3.MSA (Issue 5 - Penalties Under Section 2810)

Defendants argue that summary adjudication as to Labor Code Section 2810 is warranted because that section only pertains to contracts “for labor or services with a construction, farm labor, garment, janitorial, security guard, port drayage motor carrier, or warehouse contractor[.]” (Lab. Code, § 2810 (a).) Further, plaintiff’s LWDA letter included no reference to this statute. Plaintiff does not respond to this issue whatsoever in his opposition brief and does not dispute the material fact offered by defendants in support of the issue (see SSUMF, Fact No. 8, and plaintiff’s response).

Summary adjudication is granted as to Issue 5.

4.MSA (Issue 6 - Labor Code Section 558)

Defendants’ motion asserts plaintiff cannot recover any penalties for violations of Labor Code section 558. Since the time this action was filed, this issue has been considered and decided by the California Supreme Court in *ZB, N.A. v. Superior Court* (2019) 8 Cal.5th 175, which held that “section 2699, subdivision (a) does not authorize employees to collect section 558’s unpaid wages through a PAGA action.” (*ZB, N.A., supra*, 8 Cal.5th at 188.) In the opposition, plaintiff concedes the issue and does not dispute the fact offered in support of this issue (see SSUMF, Fact No. 9, and plaintiff’s response).

Summary adjudication is granted with respect to violations of Labor Code section 558.

5.MSA (Issue 7 – Penalties for Violations Only Within One Year Only)

Defendants’ motion asserts plaintiff can only recover penalties dating back one year from the PAGA notice and seeks summary adjudication as to any violation pre-dating the one-year prior to plaintiff’s PAGA notice. The one-year statute of limitations under PAGA is a rule articulated in multiple controlling authorities. (See, e.g., *Esparza v. Safeway, Inc.* (2019) 36 Cal. App. 5th 42, 59-60; *Brown v. Ralphs Grocery Co.* (2018) 28 Cal.App.5th 824, 839.)

In opposition, plaintiff first contends that defendants have waived this argument, but as noted in the reply, an affirmative defense based on the statute of limitations in Labor Code section 340 was asserted in both the answer and the amended answer.

The opposition further invokes the Legislature’s 2025 amendment of the PAGA statute to include an explicit reference to Labor Code, section 340 which, in turn imposes a one-year limitations period. The opposition takes the position that the amendment shows the law was in question before the amendment, but cites no case or statutory language demonstrating the limitations period was ever three years. This interpretation appears to be unsupported and contradictory to the view taken by multiple appellate courts.

Summary adjudication is granted as to this issue.

6.MSA (Issues 8 and 9 – “PAY PLAN 1” and “PAY PLAN 2”)

Defendants argue they are entitled to summary adjudication with respect to “Pay Plan 1,” which was in effect May 11, 2015 through December 2017, as well as “Pay Plan 2,” which has been in effect December 2017 through the present. They argue that the “hourly production bonus” was a not a “piece-rate plan requiring separate pay for hours spent on non-piece-rate tasks and rest breaks.”

Defendants contend “there is no factual dispute that defendants did separately pay at least minimum wage for all hours worked, including rest breaks & non-productive time.” Defendants rely on a recent appellate decision, from the Second Appellate District: *Mora v. C.E. Enterprises, Inc.* (2025) 340 Cal.Rptr.3d 368.

Plaintiff responds that the decision in *Mora* does not control here. In support of their supplemental briefing, they request judicial notice of the trial court’s opinion that was reviewed and affirmed in *Mora*. There, the trial court specifically noted in its Statement of Decision that, despite judgment in favor of defendants, “[n]othing in this decision [...] is intended to be a finding on whether or not the [defendant] payplan is structurally illegal, or otherwise violative of the Labor Code provisions regarding the payment of legally required wages.” (Request for Judicial Notice, Ex. B, 4:10-12.) The appellate court proceeded to review the trial court’s judgment with substantial commentary about the standard of review and whether appellant plaintiffs had sufficiently met their evidentiary burden in the trial court.

Accordingly, even if parties were able to show identical issues in this case as in *Mora*, that opinion does not control based on comments by both the trial court and the appellate court. (See, e.g., *Mora, supra*, 116 Cal.App.5th at 87 [declining to consider new arguments made in reply brief, noting on appeal, the trial court is presumed to have ruled correctly, and noting “appellants have failed to provide an adequate record for us to review their contentions regarding their PAGA claim”].) Further, there are several disputes of fact that appear to be material to these issues. (See SSUMF, Fact Nos. 11-17, and plaintiff’s response.)

At a minimum, plaintiff submits evidence (to which defendants do not object) that “Defendants’ compensation system for workers is based on the number of ‘pieces’ of work completed, and as such should be viewed as a piece-rate system of pay. Compensation is never determined by the ‘base hourly rate’ multiplied by ‘straight-time hours’ plus some ‘productivity bonus,’ as would be the case in a payroll system based on an hourly wage and the number of clocked hours worked.” (Declaration of David Fairris, ¶4.) This is sufficient to create a triable dispute of fact.

Defendants’ request for summary adjudication on issues 8 and 9 is denied.

17. 9:00 AM CASE NUMBER: MSC21-02493

CASE NAME: KUAR VS. MAHARAJ

HEARING ON SUMMARY MOTION

FILED BY:

TENTATIVE RULING:

Denied as moot based on cross-complainants' July 2, 2026 voluntary dismissal without prejudice of cross-complaint against the moving party/cross-defendant Suman Behari.

18. 9:00 AM CASE NUMBER: N23-2314

CASE NAME: STEVEN SMITH VS. AURIN CANSON

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: DAVID HERMELIN**

FILED BY: CANSON, AURIN M.K.

TENTATIVE RULING:

David Hermelin's Motion to Be Relieved as Counsel for Defendant Aurin Canson will be **granted** as soon as counsel complies with California Rule of Court 3.1362(e) and lodges a proposed order with the Court.

19. 9:00 AM CASE NUMBER: N26-0541
CASE NAME: CARMEN SAMIERE VS. MATEO MAYNE
HEARING IN RE: PETITION TO CORRECT OR VACATE ARBITRATION AWARD
FILED BY: SAMIERE, CARMEN MARIE
TENTATIVE RULING:

Petitioner Carmen Samiere seeks to correct the arbitration award she received against Respondent Mateo Mayne. The Court previously approved alternate service on Mayne, and so it is perhaps no surprise that Mayne has not responded to the Petition.

Pursuant to Code of Civil Procedure Section 1286.6:

Subject to Section 1286.8, the court, unless it vacates the award pursuant to Section 1286.2, shall correct the award and confirm it as corrected if the court determines that:

- (a) There was an evident miscalculation of figures or an evident mistake in the description of any person, thing or property referred to in the award;
- (b) The arbitrators exceeded their powers but the award may be corrected without affecting the merits of the decision upon the controversy submitted; or
- (c) The award is imperfect in a matter of form, not affecting the merits of the controversy.

This Court must give every intendment of validity to arbitration award, and burden is on one claiming error to support his claim. (*Griffith Co. v. San Diego College for Women* (1955), 45 Cal. 2d 501, 516.) "The mere fact that an arbitrator used unsound reasoning in reaching a conclusion or reached an erroneous conclusion within the scope of arbitration will not invalidate the result." (*Durand v. Wilshire Ins. Co.* (1969) 270 Cal. App. 2d 58, 63.)

Here, Samiere argues that the arbitrator ignored certain of her evidence in denying some of her requested damages. She further argues that the arbitrator did not give any reasoning in denying her Request for Modification. Upon review of the Petition, Samiere is essentially asking for this Court to re-weigh evidence that was fully litigated before the arbitrator, including *with* the involvement of Mayne. The Court does not reach the "intrinsic validity" of the award, but looks only to "whether the arbitrator exceeded his or her powers." (*Rifkind & Sterling, Inc. v. Rifkind* (1994) 28 Cal. App. 4th 1282, 1290.) What Samiere is seeking would affect the merits, which is not permitted. (*See, e.g., E-Commerce Lighting, Inc. v. E-Commerce Trade LLC* (2022) 86 Cal. App. 5th 58.)

The Petition is therefore **denied**.

Discovery Law & Motion

20. 9:01 AM CASE NUMBER: C25-01274

CASE NAME: MARK ZUCCA VS. NELLY PICKERT

***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF'S FURTHER ANSWERS TO FIRST FORM INTERROGATORIES PROPOUNDED BY DEFENDANT EDWARD S. WASNIOWSKI**

FILED BY: WASNIOWSKI, EDWARD S.

TENTATIVE RULING:

Defendant Edward Wasniowski has filed a Motion to Compel Plaintiff's Further Answers to First Form Interrogatories. Plaintiff Mark Zucca has filed no opposition.

The recent procedural history of this case bears some discussion. On May 28, 2026, the Court sustained a demurrer by Defendants SV Quick Capital Corporation and Eminent Capital Investments to Counts 1-9, 11, 12, and 22 of the Complaint, granting leave to amend. Plaintiff has not amended. On June 11, 2026, Paula Grohs was relieved as counsel for Plaintiff. No new attorney has filed an appearance on behalf of Plaintiff. The Court is therefore not certain if Plaintiff still intends to prosecute his case.

Defendant Wasniowski seeks further answers to five interrogatories. Wasniowski filed a Motion, a Memorandum of Points and Authorities, and a Declaration, which is not compliant with California Rule of Court 3.1345(a). Given the extraordinary circumstances at issue in this particular case, and in the interest of judicial economy, the Court will proceed on this Motion despite the failure to comply with Rules of Court. Counsel is admonished to file compliant documents in the future.

The requests Wasniowski has propounded are reasonable and Plaintiff's failure to respond fully is not justified. For those reasons, Defendant's Motion is **granted**.

Interrogatory 2.5

Plaintiff must provide his residence address.

Interrogatory 9.1

Plaintiff must list all damages currently known to him arising out of the incidents at issue in the complaint.

Interrogatory 12.2

Plaintiff must respond regarding any interviews relating to the incidents at issue in the complaint.

Interrogatory 12.3

Plaintiff must provide any written or recorded statements relating to the incidents at issue in the complaint.

Interrogatory 12.4

Plaintiff must provide any reports relating to the incidents at issue in the complaint.

Sanctions

Plaintiff must pay sanctions in the amount of \$450 to defendant Wasnioski.

Amended discovery responses and sanctions are due no later than 30 days following the hearing.

21. 9:01 AM CASE NUMBER: C25-01311

CASE NAME: SAYED AMIR EFFATNEYAD VS. NEDA VALIASHRAFI

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER WRITTEN RESPONSE WITHOUT
OBJECTIONS AND FOR FURTHER DOCUMENT PRODUCTION AGAINST SEYED AMIR EFFATNEJAD
FILED BY: VALIASHRAFI, NEDA**

TENTATIVE RULING:

Given the Court's prior stay of this matter, this Motion cannot be heard. The Court reminds Plaintiff of its Order to Show Cause why this lawsuit should not be abandoned—pursuant to the indications of Plaintiff's bankruptcy counsel and the bankruptcy court—by no later than the date of this hearing. As of the posting of this tentative ruling, the Court has no submission.